

25CV04629 Casa Mirador CVIII LLC vs Norte Mountain Home Properties LLC et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Hearing re Ex Parte Application re TRO, etc.

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Hearing Date / Time

Fri, 09/18/2026 - 10:00

Nature of Proceedings

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Tentative Ruling

For the reasons stated herein, the application of plaintiff for a temporary restraining order, for an order to show cause why a preliminary injunction should not issue, and for leave to file a first amended complaint is granted, in part. The court grants plaintiff leave to file the first amended complaint in the form submitted as exhibit O to the compendium of evidence filed in support of the application, and deems that first amended complaint filed and served as of the date of this hearing. The court further orders plaintiff to, on or before September 21, 2026, separately file a clean copy of the first amended complaint in the same form. Except as herein granted, the application is otherwise denied without prejudice.

Background:

As alleged in the complaint filed by plaintiff Casa Mirador CVIII, LLC, (Plaintiff):

Plaintiff owns real property in Gaviota, California, commonly known as 108 Hollister Ranch Rd. (the Casa Mirador Property). (Complaint, ¶ 1.) R. Cord Phelps (RC Phelps) and Lea Phelps (the Phelps) are the managers and members of Norte Mountain Home Properties, LLC, aka Mountain Home Properties (Mountain Home), which owns real property in Gaviota, California, commonly known as 110 Hollister Ranch Rd. (the Phelps Property). (Complaint, ¶¶ 2-4.)

The Casa Mirador Property and the Phelps Property (collectively, the Properties) are serviced by a private roadway called Del Norte. (Complaint, ¶ 10 & exhibit 1.) Plaintiff, Mountain Home, and the Phelps equally use Del Norte approximately thirty times per month. (Complaint, ¶ 11.) There are no other users of Del Norte other than Alegria Domestic Mutual Water Company, Inc., (the Water Company) which services parcels within Hollister Ranch. (Ibid.)

The rights to use Del Norte were created through private easements included in the deeds for the Properties, and which are silent as to repair and maintenance. (Complaint, ¶¶ 11, 13.) Because Del Norte is not included within the roadway system of Hollister Ranch, the Hollister Ranch Owners' Association (the HROA) is not responsible for the repair and maintenance of Del Norte. (Complaint, ¶ 12.) Instead, that obligation falls upon the owners of the easement. (Ibid.)

When Plaintiff purchased the Casa Mirador Property in February of 2020, Del Norte had fallen into a state of disrepair. (Complaint, ¶ 14.) In 2021, Casa Mirador bore the full cost of repairs to Del Norte. (Complaint, ¶ 15.)

Between 2021 and 2023, historical rainfall further degraded Del Norte. (Complaint, ¶ 16.) In 2023, one of Plaintiff's owners, R. Madison Murphy (Murphy), reached out to the Phelps to discuss paving Del Norte, which the Phelps opposed. (Complaint, ¶¶ 14 & 18-19.) In January 2024, RC Phelps declined a meeting requested by Murphy to discuss a mutual approach to maintenance of Del Norte. (Complaint, ¶¶ 20-21.) RC Phelps also rejected a road maintenance agreement suggested in a letter from Murphy's counsel to RC Phelps dated June 5, 2024. (Complaint, ¶¶ 22-23.)

After RC Phelps rejected the road maintenance agreement suggested by Murphy's counsel, Murphy engaged civil engineer Mark Braun (Braun) of Braun & Associates, Inc., (Braun Associates), who assessed the condition of Del Norte and provided a recommendation for its maintenance and repair. (Complaint, ¶ 24 & exhibit 2.) On March 17, 2025, Murphy wrote to the Phelps informing them that he had engaged Braun; enclosing Braun's written recommendations for Del Norte; and noting that Murphy had solicited a bid for the work recommended by Braun and intended to proceed with that work which commenced in June 2025. (Complaint, ¶¶ 25-26.) The total cost for the project to repair Del Norte was \$170,507.71, for which Plaintiff has received no proportional contribution despite a written demand by Plaintiff's counsel. (Complaint, ¶¶ 26-28 & exhibit 3.)

On July 25, 2025, Plaintiff filed their complaint against defendants Mountain Home and the Phelps (collectively, Defendants) asserting two causes of action: (1) contribution to easement maintenance Civil Code section 845; and (2) declaratory relief.

On October 6, 2025, Defendants filed an answer to the complaint, generally denying its allegations and asserting nineteen affirmative defenses.

On August 14, 2026, Plaintiff filed an ex parte application (the Application) for a temporary restraining order (TRO); an order to show cause (OSC) why a preliminary injunction should not issue; and for leave to file a verified first amended complaint (the FAC).

The specific orders sought by the Application include: (1) an order deeming the owner of record of APN 083-700-006 (i.e., the Phelps Property) to have provided written consent and authorization for Plaintiff to file and prosecute an "Emergency Permit" application for the repair shown on the engineered plans of Braun Associates dated April 20, 2026, (the Braun Plans); (2) an order enjoining Defendants from revoking, withdrawing, purporting to condition, or contesting that deemed written consent and authorization; (3) an order enjoining Defendants from communicating to the County of Santa Barbara (the County), the HROA, or any engineer, contractor, or consultant engaged by Plaintiff, any objection to or purported withdrawal of the deemed owner consent and authorization; (4) an order enjoining Defendants from interfering with, obstructing, impeding, delaying, or preventing Plaintiff's exercise of purported easement rights including by preventing Plaintiff, its engineers, or

contractors from entering the Phelps Property to perform the repair shown on the Braun Plans; and (5) an order granting Plaintiff leave to file the proposed FAC.

The Application was calendared for hearing on August 17, 2026, and is supported by the declarations of Plaintiff's counsel, Elizabeth A. Culley (attorney Culley), Braun, and Murphy, and by a five part compendium of evidence or "COE".

On August 17, Mountain Home filed an opposition to the Application requesting, among other things, that the hearing be continued to September 14 or later to allow Mountain Home's engineer, Kevin Trigg (Trigg), time to complete their analysis of the repair proposed by Plaintiff. The opposition states that the Application "can ... be taken off calendar if ... Trigg has approved of the project before the hearing", and that should Trigg "not approve, the hearing may proceed then on the merits of his objections to the project." (Opp. at p. 6, ll. 12-16.)

On August 17, after a hearing, the court reserved ruling on the Application and continued the hearing to September 18.

On September 4, Mountain Home filed a supplemental opposition to the Application which is supported by a declaration of Trigg. Plaintiff has filed a reply to the oppositions of Mountain Home.

Analysis:

The Application asserts that the status quo consists of a passable Del Norte by virtue of temporary measures that existed before a landslide that occurred in January 2026 on the Phelps Property (the landslide); that Del Norte is presently without lateral support along its downhill edge as a result of the landslide; that the temporary measures in place will not survive another significant rain; that if the repair is not completed before the first significant rain, the first large storm is likely to wash out Del Norte and sever the only vehicular access to the Casa Mirador Property; that Defendants are interfering with Plaintiff's exercise of its easement rights by withholding an owner authorization required by the County and the HROA for the repair work; that the County's Planning and Development Department (the Department) has confirmed in writing that it will accept a conformed copy of the proposed order submitted with the Application to satisfy "Article II, section 35-57A.B" of the Santa Barbara County Code and will thereafter accept Plaintiff's "Emergency Permit" application (the Permit Application) for review on its merits; that Plaintiff is likely to prevail on the merits of the proposed FAC; and that Defendants will suffer no cognizable harm because the repair is at Plaintiff's sole cost, confined to the existing alignment, enlarges no easement right, and is subject to an undertaking and conditions proposed by Plaintiff. (Notice at p. 3, ¶¶ 1-7.)

The undisputed or effectively undisputed record shows that the landslide giving rise to the allegations of the proposed FAC occurred after the filing of Plaintiff's original complaint. (Application at p. 5, ll. 10-12.) The Application concedes that on August 11, Defendants identified Trigg as their engineer and stated that they would sign the forms required by the County provided that Trigg approves the Braun Plans. (Application at p. 6, ll. 1-3.) Plaintiff contends that, though the work must be substantially complete by mid-September 2026 and cannot be performed on saturated ground, Trigg has "produced nothing". (Application at p. 6, ll. 4 & 19-20.) The Application further asserts that if the road washes out during the wet season, it cannot practicably be rebuilt until the following dry season resulting in an entire winter with no vehicular access to an occupied home. (Application at p. 6, ll. 23-25.)

The Application further shows, without dispute, that Plaintiff's original complaint sought only "contribution under Civil Code section 845 and declaratory relief arising out of the 2025 repairs", that Defendants' purported refusal to satisfy the consent requirements of the HROA and the County arose in July 2026 after the landslide occurred, and that the proposed FAC pleads those "newly occurring wrongs[]" and "adds causes of action" in regard to the landslide, "the engineered repair, those consent requirements, and Defendants' refusal to cooperate" (Application at p. 18, ll. 6-13.) For these reasons, the Application explains, leave to file the proposed FAC is necessary "because of the emergency relief requested[]", and that without the FAC, Plaintiff "could not seek a temporary restraining order" without the allegations "which are not pleaded in the original [c]omplaint." (Application at p. 18, ll. 14-16.)

For all reasons discussed above, the court will first address Plaintiff's request for leave to file the proposed FAC.

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).)

The court's discretion “to allow amendments to the pleadings ... should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) “Further, this liberal policy applies to amendments ‘at any stage of the proceedings, up to and including trial,’ absent prejudice to the adverse party. [Citation.]” (Tung v. Chicago Title Company (2021) 63 Cal.App.5th 734, 747.) “[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’ [Citations.] If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations.]” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530; see also Nestle v. City of Santa Monica (1972) 6 Cal.3d 920, 939.)

In support of the Application, Murphy states that the landslide which removed a large volume of material from the embankment that holds up the roadway occurred after heavy winter storms on the slope below and adjacent to Del Norte on the Phelps Property. (Murphy Dec., ¶ 21.) As a result of the landslide, the downhill edge of the road, including a rock berm installed ostensibly by Plaintiff in 2025, is now hanging over an open scarp with nothing beneath it. (Ibid.) Murphy submits photographs of the landslide, which Murphy asserts accurately depict the conditions they observed. (Murphy Dec., ¶ 21; COE, exhibit B.)

Murphy contacted Braun to evaluate the landslide, and to tell Murphy what could be done right away to keep Del Norte passable, to limit further loss through the rest of the winter, and to design a permanent repair. (Murphy Dec., ¶ 22.) On Braun's recommendation, and at Plaintiff's sole cost, Murphy implemented the temporary measures identified by Braun which included an earthen berm to direct water away from the landslide, sand bags at the rim, wattling at the rim and in the landslide itself, and protective traffic cones. (Murphy Dec., ¶ 23.) Murphy has not asked the Phelps to contribute to the cost of those temporary measures, which, according to Braun, do not restore support underneath the roadway, do not stop the landslide, and will not survive another significant rain. (Murphy Dec., ¶ 24.) Accordingly, Murphy has asked Braun to design a permanent repair. (Murphy Dec., ¶ 25.)

Braun prepared the Braun Plans, which call for a soldier pile and lagging retaining wall with drainage, engineered backfill, and restoration of the road surface. (Murphy Dec., ¶ 25; COE, exhibit C.) Terra Firma Drilling, Inc., (Terra Firma) submitted a proposal for the drilled piles and lagging for a base price of \$95,563. (Murphy Dec., ¶ 26.) At the requirement of Terra Firma, Murphy signed and accepted that proposal on August 4, 2026. (Ibid.; COE, exhibit D.)

In addition, J.T.B. Excavating, Inc., (JTB) submitted Estimate No. 302 dated June 10, 2026, in the amount of \$78,600 for associated grading, drainage, backfill, and roadway restoration. (Murphy Dec., ¶ 26; COE, exhibit D.) Murphy states that Plaintiff will pay the entire cost of the work with an appropriate division to be determined either through informal resolution or by the court. (Murphy Dec., ¶ 26.)

Plaintiff submitted the Braun Plans to the HROA Design Committee for review, and on or about July 11, 2026, Murphy met with that committee regarding the Braun Plans. (Murphy Dec., ¶ 28.) Though Murphy believes that the Phelps were invited to participate, the Phelps did not attend that meeting. (Ibid.) The HROA approved the work as designed by Braun but advised that the owner of the Phelps Property must sign-off before any work could proceed. (Ibid.)

In July 2026, Plaintiff submitted the Permit Application to the Department for the repair shown on the Braun Plans. (Murphy Dec., ¶ 33.) Though the County has not denied that application, on July 27, 2026, the Supervising Planner of the Department, Kimberley McCarthy (McCarthy), advised Murphy's counsel that the Permit Application could not be accepted without an

"Authorization of Applicant or Owner/Applicant Consent" form (the Consent Form) signed by the owner of record of the Phelps Property. (Murphy Dec., ¶¶ 33-34; COE, exhibit H.) It is Murphy's understanding that the County will not accept the Permit Application until the Phelps sign the Consent Form. (Murphy Dec., ¶ 34.) Though Murphy's counsel demanded that the Phelps execute the Consent Form, the Phelps did not execute that form. (Ibid.)

Murphy has directed their counsel to ask that the Phelps engage with and approve the repair shown on the Braun Plans, to coordinate that work, and to tell Murphy who their engineer is so that Murphy's engineers could meet and agree on the design and process. (Murphy Dec., ¶ 29.) Murphy also authorized their counsel to inform the Phelps that Murphy was not wedded to any particular detail of Braun's design and that if their engineer identified a better approach, Braun would consider it in good faith. (Ibid.) In the event the Phelps signed the Consent Form, Murphy also authorized their counsel to offer to hold any emergency permit in abeyance until the parties' engineers had met and conferred. (Murphy Dec., ¶ 30.)

Though the Phelps identified Trigg as their engineer on August 11, Murphy understands that Braun attempted to contact Trigg but was met with a full voicemail box. (Murphy Dec., ¶ 31.) Murphy asserts that the Phelps have not signed the Consent Form authorizing the Permit Application to be processed, and have not proposed any alternative engineered design or suggested any modification to the Braun Plans other than to generally suggest "winterization". (Murphy Dec., ¶ 32.)

Braun states that on January 14, 2026, Braun visited the site to observe and evaluate its condition. (Braun Dec., ¶ 11.) According to Braun, a substantial volume of material had detached from the embankment that provides lateral support to Del Norte and had translated downslope, which removed support from beneath the downhill edge of the roadway and left the remaining roadway fill and the rock berm installed in 2025 cantilevered over an open scarp. (Braun Dec., ¶ 12; COE, exhibit B.) It is Braun's opinion that the failure may have been caused by the saturation of the slopes during the storms of 2025 and 2026, and as a direct result of heavy rains and runoff from the upper areas which saturated the upper soils causing a typical slide failure plane. (Braun Dec., ¶ 13.) It is Braun's opinion that the roadway work in 2025 did not cause this failure. (Braun Dec., ¶ 14.)

The Braun declaration also includes Braun's analysis of the temporary and permanent repair options. (Braun Dec., ¶¶ 15-20.) Braun states that the temporary measures now in place will not survive another significant rain event; that the material below the roadway remains unsupported, and the head scarp remains exposed. (Braun Dec., ¶ 19.)

On April 20, 2026, Braun prepared and signed the Braun Plans, which call for the construction of a soldier pile and lagging retaining wall designed for a maximum shored height of 10 feet with 20 feet of embedment and consisting of drilled piles set with steel beams with pressure-treated timber lagging spanning between the piles; a drainage system behind the wall; a soil cover; a bench drain above the wall; a compacted earth berm; engineered backfill placed behind the wall; and restoration of the roadway surface to match the existing roadway. (Braun Dec., ¶¶ 21-23; COE, exhibit C.) Braun asserts that the work requires periodic and continuous inspection and compaction testing, which Braun Associates will provide. (Braun Dec., ¶ 23.)

Braun asserts that the Braun Plans restore lateral support to the existing alignment of Del Norte, and do not widen, relocate, extend, or change the alignment of the roadway. (Braun Dec., ¶ 24.) It is Braun's opinion that the design represents the minimum intervention that will restore lateral support to the roadway and arrest the failure. (Ibid.) Braun asserts that they are not aware of a design that would accomplish those objectives with less disturbance. (Ibid.)

Braun also states that, apart from a typographical error in regard to the Assessor's Parcel Number identified on the cover sheet of the Braun Plans, the Braun Plans are drawn to current standards and incorporate the applicable County grading notes and soils testing requirements; that the geotechnical basis for the Braun Plans is adequate; and that no further investigation is required before the repair can be constructed safely and in conformance with applicable standards. (Braun Dec., ¶¶ 25-26.) Braun has also reviewed the proposal of Terra Firma for the drilled piles and lagging, and the estimate of JTB for the associated grading, drainage, backfill and roadway restoration. (Braun Dec., ¶ 27; see also COE, exhibit D.) Braun asserts that both are consistent with the scope shown on the Braun Plans and reflect reasonable pricing for this work in this location. (Braun Dec., ¶ 27.)

Plaintiff has submitted clean and “redlined” copies of the proposed FAC. (Culley Dec., ¶ 49; COE, exhibits O & N.) Attorney Culley asserts that the proposed FAC adds the allegations described above concerning the landslide, the repair engineered by Braun, the consent requirements of the County and the HROA, and Defendants’ refusal to cooperate; and causes of action for interference with easement and injunctive relief. (Culley Dec., ¶ 49.) Attorney Culley notes that no trial date has been set in this action; that no discovery cutoff has passed; that the amendment adds no new parties; and that attorney Culley is not aware of any prejudice that Defendants would suffer from any amendments to the original complaint to add the allegations and matters further described above. (Culley Dec., ¶ 50.)

The court’s own review of the proposed FAC shows that the amended pleading changes the original complaint by adding, editing, or clarifying allegations regarding a purported easement appurtenant to the Casa Mirador Property; the manner in which the Casa Mirador Property and the subject easement were conveyed; the landslide and its effects on Del Norte; the actions taken by Plaintiff after the landslide including Plaintiff’s retention of Braun; the temporary measures implemented by Plaintiff at Braun’s recommendation; the preparation of and repairs reflected in the Braun Plans; the solicitation of bids by Plaintiff for those repairs; the submission of the Braun Plans to the HROA Design Committee; the submission of the Permit Application to the Department; the purported refusal by Defendants to coordinate the repair work and to execute the Consent Form; the reasons why the work shown on the Braun Plans must be completed before the next significant rain; and the costs Plaintiff expects to incur in connection with the maintenance and repair of Del Norte arising out of the landslide, among other things. (COE, exhibit N at pdf pp. 75-80.)

The proposed FAC also adds causes of action for interference with easement and injunctive relief. (COE, exhibit N at pdf pp. 84-86.)

Considering the information and evidence provided in the declarations of Murphy, Braun, and attorney Culley in regard to the occurrence of the landslide and the subsequent events arising out of or resulting from the landslide, the court does not find that Plaintiff unreasonably delayed in seeking leave to file the proposed FAC. The court further finds that there exists substantial justification under the circumstances present here to permit Plaintiff to amend their complaint to present their case. The Application also complies with the requirements of California Rules of Court, rule 3.1324.

In their opposition to the Application, Defendants assert that the interference with easement claim will involve multiple experts, is specious; and is likely to result in additional motion practice. For these reasons, Defendants contend, the request for leave to file the proposed FAC should be brought by noticed motion. Defendants alternatively contend that Plaintiff’s contractors caused the landslide by negligently designing the existing road, and that Plaintiff waited eight months to demand permitting documents and disclose a construction schedule and geotechnical findings. For these reasons, Defendants argue, Plaintiff is barred from seeking the relief requested in the FAC by the doctrines of unclean hands and laches.

In the supplemental opposition of Defendants filed on September 4, Defendants contend or appear to contend that the claims asserted in the proposed FAC are moot because Defendants have produced the requested permit authorization notwithstanding any remaining disputes as to the manner in which to proceed with any repairs to Del Norte.

The points advanced by Defendants in their opposition and supplemental opposition to the Application do not persuade the court that Plaintiff unreasonably delayed in seeking leave to file the proposed FAC. Even if Defendants could present information or evidence sufficient to show delay by Plaintiff, delay alone is not a sufficient ground to deny Plaintiff’s request for leave to file the FAC. (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 563–564.)

Defendants also present no evidence, information, or reasoned argument showing why they will be prejudiced by the filing of the proposed FAC. (See, e.g., *Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 910 [discussing circumstances where an amendment to a pleading may result in prejudice].) To the extent Defendants contend that the FAC fails to allege facts sufficient to constitute a cause of action or is otherwise deficient, Defendants may “test its legal sufficiency in other appropriate proceedings.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 & fn. 21.)

For all reasons discussed above, the court finds that Plaintiff has timely requested leave to file the proposed FAC; that the Application complies with the procedural requirements set forth in California Rules of Court, rule 3.1324; and that the

Application presents sufficient grounds to permit Plaintiff to amend its original complaint. Defendants have not shown why the granting of leave to file the FAC will prejudice Defendants. Therefore, and for these reasons, the court will grant the Application, in part as to the request for leave to file the FAC. Further, the court will deem the FAC filed and served by Plaintiff as of the date of the hearing on the Application, and will require Plaintiff to separately file a clean copy of the FAC in the form submitted as exhibit O to the COE.

As to the request for a TRO deeming the owner of record of the Phelps Property to have provided written consent for the repair work reflected in the Braun Plans; enjoining Defendants from revoking, withdrawing, purporting to condition, or contesting that deemed consent; and enjoining Defendants from communicating any objection to or purported withdrawal of that deemed consent (see notice at p. 2, ¶¶ 1, 2 & 4), that request appears moot for the reasons discussed below and will be denied on that basis.

“An injunction is a writ or order requiring a person to refrain from a particular act. It may be granted by the court in which the action is brought, or by a judge thereof; and when granted by a judge, it may be enforced as an order of the court.” (Code Civ. Proc., § 525.) Code of Civil Procedure section 526 provides that an injunction “may be granted in the following cases:

“(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.

“(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.

“(3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.

“(4) When pecuniary compensation would not afford adequate relief.

“(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.

“(6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings.

“(7) Where the obligation arises from a trust.” (Code Civ. Proc., § 526, subd. (a)(1)-(7).)

“TROs may be issued ex parte and with little notice. Unlike a preliminary injunction, a TRO does not require a full evidentiary hearing giving each party the opportunity to present arguments and evidence. A TRO does not require a plaintiff to post a bond pending final resolution of the case. A TRO need not be dissolved but terminates automatically when a preliminary injunction is granted or denied. And, issuance of a TRO does not necessarily involve evaluation of the merits of the underlying dispute.” (Hardie v. Nationstar Mortgage LLC (2019) 32 Cal.App.5th 714, 724.) “Whether an order restraining a defendant from an action is a temporary restraining order or a preliminary injunction is determined not by the title of the document, but its effect.” (Integrated Lender Services, Inc. v. County of Los Angeles (2018) 22 Cal.App.5th 867, 872, fn. 2.)

In addition to the matters described above, attorney Culley states that on July 24, 2026, their office transmitted a letter to McCarthy setting out the basis for Plaintiff’s authority to perform the repair on the Phelps Property, together with a recorded easement, photographs of the landslide, and the Braun Plans. (Culley Dec., ¶ 42; COE, exhibit K.) On July 27, 2026, McCarthy advised attorney Culley that the Department had reviewed that documentation and discussed the matter internally; that it was that Department’s determination that any application to permit grading or development on APN 083-700-006 must be authorized by the owner of record of that property; and that the Permit Application could not be accepted without the Consent Form signed by a manager or member of Mountain Home. (Culley Dec., ¶ 43 COE, exhibit H.)

Because Plaintiff does not wish to name the County as a defendant in this action, and because attorney Culley wanted to be certain that any order this court might enter would actually resolve the obstacle rather than merely describe it, on August 7, 2026, attorney Culley sent McCarthy a draft of the proposed order lodged with Application for the County's review; directed McCarthy's attention to paragraph 3 of that order; and asked McCarthy whether the County would accept a conformed copy of the order as satisfying applicable requirements. (Culley Dec., ¶ 45; COE, exhibit L.) On August 10, 2026, McCarthy wrote that the County had reviewed the proposed order and would accept a conformed copy to satisfy section 35-57A.B of the Article II Zoning Ordinance and to allow for the submittal of the Permit Application. (Culley Dec., ¶ 46; COE, exhibit M.)

Attorney Culley asserts that the relief sought by the Application does not displace Trigg or foreclose Defendants' engineering objections; and that the proposed order permits Defendants to, within seven calendar days, identify a California-licensed engineer and to serve written objections to the Braun Plans supported by that engineer's declaration; requires Plaintiff to suspend the work if that engineer certifies a specific deficiency in the design presenting a risk to persons or to the servient tenement; permits the parties' engineers to agree upon a modification to the Braun Plans; and permits Plaintiff to implement the modified design without further order of this court. (Culley Dec., ¶ 41.) For these reasons, attorney Culley asserts, the proposed order preserves the engineering process proposed by Defendants, and places a deadline on that process. (Ibid.)

In support of Defendants' opposition to the Application, their counsel, Sean N. Nagel (attorney Nagel), states that on August 14, 2026, they represented to opposing counsel that Defendants are willing to promptly deliver the Consent Form subject to the following conditions which Defendants assert will address potential design issues: that the Consent Form is solely for permit processing and is not an approval of the Braun Plans on which Defendants reserve the right to comment; does not authorize entry, mobilization, ground disturbance or construction, or constitute acceptance of Braun or his work or any admission or waiver concerning causation, responsibility, easement rights or costs; permits Trigg to reasonably and expeditiously complete a field investigation and laboratory analysis before any final design decision is made; and prohibits construction on the Phelps Property unless and until the Phelps approve the final plans in writing after Trigg's review. (Nagel Dec., ¶ 2; Opp. at pp. 3-4.) The form attached to the declaration of attorney Nagel, which the court understands to be the Consent Form at issue in the Application, was ostensibly signed by RC Phelps on August 14, 2026. (Nagel Dec., exhibit A.)

According to attorney Nagel, opposing counsel objected to the last two conditions described above based on a timing issue, and requires the Phelps' and Trigg's determination to be made by August 21, 2026, in order to meet a construction completion deadline of September 15, 2026. (Nagel Dec., ¶ 2.)

The supplemental opposition of Defendants described above asserts that "[o]n or about Augst 18, 2026, Defendants' counsel sent Plaintiff's counsel the requested permit authorization, with the caveat that: [¶] 'no work will start pending a court order or our resolution ... and that our delivery of the permit [authorization] does not constitute acceptance at this time of Braun or his work by [the] Phelps, or any admission or waiver concerning causation, responsibility, easement rights or costs.'" (Supp. Opp. at p. 1, l. 25-p. 2, l. 2.)

The reply filed by Plaintiff presents no evidence or information to dispute that Defendants have executed the Consent Form. For example, Plaintiff asserts or effectively asserts that Defendants "consented to [Plaintiff] obtaining the emergency permit"; that Plaintiff has obtained an emergency permit issued by the County"; that Plaintiff "is ready to repair the slide", and that the only remaining dispute is the sufficiency of the design. (Reply at p. 2, ll. 4-6 & fn. 1 & pp. 4-5.)

Because the present record reflects, without dispute, that Defendants have executed the Consent Form, and for all reasons discussed above, the Application is moot as to the request for a TRO and will be denied as to that request. (McManus v. KPAL Broadcasting Corp. (1960) 182 Cal.App.2d 558, 563 [general discussion].)

The court will also, under the totality of the circumstances present here and for all reasons discussed below, deny the request for an OSC.

"As its name suggests, a preliminary injunction is an order that is sought by a plaintiff prior to a full adjudication of the merits of its claim. [Citation.] To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable

injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits.

“Past California decisions further establish that, as a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.... ‘The ultimate goal of any test to be used in deciding whether a preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause. [Citation.]’ [Citation.]” (White v. Davis (2003) 30 Cal.4th 528, 554, original italics (White).)

The court “may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.” (Butt v. State of California (1992) 4 Cal.4th 668, 678 (Butt).) As to the newly added third and fourth causes of action asserted in the FAC and described above, Plaintiff asserts that they hold a valid, recorded, appurtenant easement over the Phelps Property for ingress, egress, private utilities, and incidental purposes; that incident to that easement, Plaintiff has an obligation under Civil Code section 845 to maintain Del Norte in repair and a correlative right to enter upon the servient tenement to make repairs, renewals, and replacements, and to make such changes to the surface of the land as are reasonably necessary to make the way available for travel in a convenient manner; that Defendants have interfered with Plaintiff’s rights under the easement by refusing to execute the owner authorization required by the County as a condition of accepting and processing the Permit application; that by withholding the owner consent required by the HROA, Defendants have prevented the issuance of the permit and the repair of the landslide “notwithstanding that Defendants have not physically obstructed the roadway.” (COE, exhibit O, ¶¶ 72-75.)

The FAC further asserts that, unless restrained, Defendants will continue to interfere with Plaintiff’s rights under the easement and to prevent the repair of the landslide. (COE, exhibit O, ¶ 80.) As a result of that interference, the repair of the landslide will not be completed before the onset of the 2026 and 2027 wet season, resulting in the loss of the sole vehicular access to an occupied residence. (COE, exhibit O, ¶ 81.)

Murphy further states in support of the Application, that when their family purchased the Casa Mirador Property, they understood that it was supported by a private road easement which crossed Parcels 109, 110, and 111. (Murphy Dec., ¶ 2.) Murphy reviewed a “Corporation Grant Deed” recorded in the official records of the County on October 25, 1978, which Murphy asserts granted an easement benefiting the Casa Mirador Property in which Del Norte lies. (Murphy Dec., ¶ 2; COE, exhibit E.) Murphy further states that they and Defendants are the only residential users of Del Norte, and the only other regular user is the Water Company. (Murphy Dec., ¶ 4.) Murphy, Murphy’s guests, workers, delivery and service vehicles, the Water Company, and fire and emergency medical responders all reach the Casa Mirador Property by vehicle over Del Norte as there is no other way in or out. (Murphy Dec., ¶ 12.)

In their opposition and supplemental opposition to the Application, Defendants generally contend, in a conclusory manner, that the Corporation Grant Deed reviewed by Murphy purports to transfer an easement similar to Del Norte, but does not establish any easement rights. Defendants further contend that Plaintiff has failed to show that the Corporation Grant Deed, which Defendants assert is not referenced in a preliminary report of the Phelps, is in the “chain of title” to the Phelps Property.

“ ‘An easement is an interest in the land of another, which entitles the owner of the easement to a limited use or enjoyment of the other’s land. [Citations.] [¶] An easement creates a nonpossessory right to enter and use land in another’s possession and obligates the possessor not to interfere with the uses authorized by the easement.’ ” [Citation.] [E]asements may be created by an express grant, an implied grant, or by prescription.” (Batta v. Hunt (2024) 106 Cal.App.5th 295, 304-305.)

The court disregards statements made in declarations which are “argumentative, speculative and impermissible opinions, and also lack foundation and personal knowledge.” (Tuchscher Development Enterprises, Inc. v. San Diego Unified Port Dist. (2003) 106 Cal.App.4th 1219, 1238.) For these and all further reasons discussed above, the general and conclusory assertions contained in the Murphy declaration are insufficient to show, absent reasoned factual or legal argument supported by citations to relevant supporting authority, why the Corporation Grant Deed conveys an easement or why Del Norte lies within that easement. For these reasons, the present record gives rise to a question of fact as to whether the Corporation Grant Deed grants an easement.

Notwithstanding whether the Application is sufficient to show the existence of an easement in which Del Norte lies, the court will, for present purposes, assume without deciding that Plaintiff has “[a] right-of-way to pass over” the Phelps Property, which Defendants do not appear to dispute. (Dolnikov v. Ekizian (2013) 222 Cal.App.4th 419, 428.) “A secondary easement can be the right to make ‘repairs, renewals and replacements on the property that is servient to the easement’ [citation] ‘and to do such things as are necessary to the exercise of the right’ [citation]. ... A right-of-way to pass over the land of another carries with it ‘the implied right ... to make such changes in the surface of the land as are necessary to make it available for travel in a convenient manner.’ [Citation.]” (Ibid.) For these reasons, the Application is minimally sufficient, for present purposes only, to show “some possibility that [P]laintiff would ultimately prevail on the merits of the claim.” (Butt, supra, 4 Cal.4th at p. 678.)

The court must also evaluate “the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued.” (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 69–70.) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction. [Citation.]” (Butt, supra, 4 Cal.4th at p. 678.)

“An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction.” (East Bay Mun. Utility Dist. v. Department of Forestry & Fire Protection (1996) 43 Cal.App.4th 1113, 1126.) “A preliminary injunction is proper only if there is a substantial basis to suppose that the defendant, if not restrained, will actually engage in the conduct sought to be enjoined.” (Epstein v. Superior Court (2011) 193 Cal.App.4th 1405, 1410, original italics.) “An injunction cannot issue in a vacuum based on the proponents’ fears about something that may happen in the future. It must be supported by actual evidence that there is a realistic prospect that the party enjoined intends to engage in the prohibited activity.” (Korean Philadelphia Presbyterian Church v. California Presbytery (2000) 77 Cal.App.4th 1069, 1084.)

Though Plaintiff asserts that Defendants are interfering with the work depicted in the Braun Plans and refuse to permit that work to proceed, wholly absent from the Application and reply is any information or evidence which demonstrates the manner in which Defendants have interfered with the work depicted in the Braun Plans. For example, the Application and reply fail to explain what, if any, conduct by Defendants has prevented Plaintiff from commencing the work shown on the Braun Plans, or why. Instead, the moving and opposing papers reflect the existence of a dispute between Braun and Trigg as to the manner in which the repairs of Del Norte in the area of the landslide should proceed, and whether the Braun Plans are sufficient or sufficiently engineered; and that the parties are in the process of conferring in regard to the sufficiency of the Braun Plans. (See, e.g., Trigg Dec., ¶¶ 7-11; Reply at pp. 4-5 [stating that the “only” dispute is the sufficiency of Braun’s design].) The Application fails to explain why the existence of that dispute, alone, has physically prevented Plaintiff from proceeding with the repair shown on the Braun Plans.

For the same reasons discussed above, the Application is also insufficient to show why any conduct by Defendants constitutes a “threatened infringement of [Plaintiff’s] rights.” (Maria P. v. Riles (1987) 43 Cal.3d 1281, 1292.) For example, the Application and reply present no information or evidence showing why Defendants have indicated any intent to interfere with or prevent Plaintiff from proceeding with the work shown on the Braun Plans based on any dispute raised by Trigg or the Phelps. Absent evidence of any actual or threatened conduct by Defendants which the Application seeks to enjoin, the present record does not show or suggest an immediate or impending injury to Plaintiff that can only be avoided by the issuance of the requested injunction.

The injunction sought by the application is also broadly worded, and does not specify what, if any, conduct by Defendants has or will interfere with, obstruct, impede, delay, or prevent Plaintiff from performing the repairs depicted in the Braun Plans. For example, Murphy asserts that the Phelps and any engineer they retain are welcome to observe the work. (Murphy Dec., ¶¶ 40-43.) Braun states that in July 2026, Braun communicated to Murphy that Braun remains willing and available to meet at the site, or at any location convenient for any engineer retained by Defendants, to walk the failure, review the Braun Plans, and to discuss any alternative or modification to those plans Defendants or their engineer wish to propose. (Braun Dec., ¶ 39.) To the extent the Phelps review or discuss the Braun Plans, observe the work, or meet at the site to walk the failure, the Application does not explain whether or to what extent that conduct interferes with, obstructs, impedes, delays, or prevents Plaintiff from performing the work shown on the Braun Plans.

For the reasons discussed above, the injunction sought by the Application appears impermissibly vague. (See *Evans v. Evans* (2008) 162 Cal.App.4th 1157, 1169 [general discussion].) Further, “judicial abstention may be appropriate in cases where ‘granting injunctive relief would be unnecessarily burdensome for the trial court to monitor and enforce given the availability of more effective means of redress.’ [Citation.]” (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 496.) For the same reasons discussed above, the available evidence and information suggests that, at this stage of the proceedings, the granting of the injunctive relief sought by the Application would be burdensome for the court to monitor and enforce.

To the extent the Application effectively seeks an order authorizing or approving the work depicted in the Braun Plans notwithstanding the ostensible dispute as to the sufficiency of those plans or whether alternative repairs are appropriate, “[t]he granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy.” (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286.)

For all reasons discussed above, the request for the issuance of the injunction described in the Application is not supported by actual evidence that Defendants will engage in the activity Plaintiff seeks to prohibit. The available information and evidence also shows or suggests, for the same or similar reasons discussed above, that the status quo would be preserved if the court were to deny the injunction, and that any effect on Plaintiff would be minimal if the court’s interim decision to deny the injunction was erroneous. (*O’Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1472 [“the general purpose of a preliminary injunction is to preserve the status quo pending a final adjudication of the claims on the merits[]”]; *White*, supra, 30 Cal.4th at pp. 554-555.) For these and all further reasons discussed above, the court will deny the request for an OSC.

Notwithstanding the court’s denial of the Application as to the requests for a TRO and OSC, the court notes that should a change in circumstances arise in the future which demonstrates that Defendants will actually interfere with, obstruct, impede, delay, or prevent Plaintiff from entering the Phelps Property to perform the repair shown on the Braun Plans, the court’s denial of the Application is without prejudice to an appropriate application seeking to restrain or enjoin any such conduct that may be filed and served by Plaintiff in the future. Nothing herein shall be construed to indicate the manner in which the court might determine or rule on any such future application. To the extent any party files an application to enjoin or restrain any conduct by any other party in the future, the court expects that party to present, in an appropriate manner, sufficient evidence, information, and reasoned argument with appropriate citations to the record to support any such request.

Judges

Judge Donna D. Geck

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